Defining the workplace and who the POSH Act covers

The term workplace, per law, can be defined as: private sector organizations, government owned or controlled establishments, hospitals or nursing homes, vocational or educational institutions, sports institutes, stadiums and training institutions, or even dwelling places, as in the case of a domestic worker.

The Act also expanded the concept of an "extended workplace" as any place visited by an employee; arising out of, or during the course of employment.

Therefore, sexual harassment at a workplace can occur in many situations, including:

- during transportation provided by the employer,
- business meals,
- training or events organized by an employer,
- promotional or public relations events with clients, customers or prospective partners,
- at a client or customer's premises, or
- during work-related phone conversations and communications via electronic media.

This law extends to and covers any person who is a regular employee, probationers, interns, apprentices, trainees, subcontractors, service providers, temporary, or ad hoc workers engaged either directly, through an agent or through a contractor. It also extends to those who may be working with or without compensation, including volunteers and guests.